IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON TUESDAY, THE 29TH DAY OF APRIL, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

CASE NO.: D2/068/24

THE REPUBLIC

VRS

1. **JESSICA DANIELS A.K.A. BLESSING**
2. **KELVIN JOHNSON A.K.A. ALASKA**

ACCUSED PERSONS PRESENT

A.S.P. CHRISTOPHER ASANTE AHOKU HOLDING THE BRIEF OF A.S.P. ISAAC BABAYI FOR THE REPUBLIC PRESENT

AUGUSTINE GYAMFI, ESQ. FOR THE ACCUSED PERSONS ABSENT

JUDGMENT

THE CHARGES

The accused persons herein were arraigned before this court charged with the offence of Conspiracy to commit crime to wit; human trafficking contrary to ***section 23(1) of the Criminal Offences Act, 1960 (Act 29)*** as read with ***sections 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784)*** as well as two counts of the substantive offence of Human Trafficking contrary to ***section 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784)*** on a charge sheet filed on 26th June 2024.

THE PLEA

The accused persons pleaded not guilty to all the three counts after the charges had been read to them. In view of that, the prosecution assumed the burden to prove the guilt of the accused persons beyond reasonable doubt.

FACTS

The brief facts of the case as presented by the prosecution are that the complainant in this case is Chief Calistus Elozipuwa a member of the Nigerians in Diaspora Organisation (NIDO), based in Ghana and the accused persons are Jessica Daniel a.k.a Blessing (A1) aged 24 hairdresser and Kelvin Johnson a.k.a Alaska (A2) aged 30 a Bitcoin (BTC) trader all Nigerians. On 1st July 2024 the complainant rescued victims Gloria Vincent a.k.a Grace 20-year-old and Gloria Igbetar a.k.a Diamond also 25 years old who were engaging in prostitution and when questioned, they told him that, they were deceived, lured and

transported to Ghana from Nigeria by A1 in the months of January and February 2024 respectively under the pretext of securing them jobs as domestic servants but ended up forcing them into prostitution. Victims were linked to an agent in Nigeria by A2, who picked them at the lorry station in Accra and also took them to an apartment where they were made to stay and work as prostitutes for A1 who demanded they paid GHS8,000.00 each to gain their freedom. A1 and A2 were subsequently rearrested by the unit. During investigation, both A1 and A2 admitted having recruited and transported the victims from Nigeria to Ghana for prostitution of which proceeds from the prostitution were collected by A2 who also handed them over to Al to be kept.

Investigations further revealed that A1 hid behind A2 to traffic the ladies to Ghana with the excuse that she was afraid the victims might harm her, if they found out that she is their madam, they are serving. Victims have been able to pay GHS8,000.00 each to A1 and A2 which they both admitted having received the said amount. After investigations the accused persons were charged with the offences stated on the charge sheet and arraigned before this honourable court.

To discharge their legal burden, the prosecution called three witnesses including the investigator in support of their case.

EVIDENCE OF THE PROSECUTION WITNESSES

PW1 who is one of the victims in this case testified that her name is Gloria Igbetar. That she knows both accused persons herein. That in February 2024, A1 deceived her that there are a lot of job opportunities in Ghana which pays well and that the value of the Ghanaian currency was better than that of the Nigerian currency. That she told her she did not have

money to travel to Ghana but A1 told her to borrow money from somebody and come to Ghana and that her boss will pay the person back when she (PW1) comes to Ghana.

According to PW1, A1 made her believe that A2 was her boss but later she got to know that A2 was rather A1's boyfriend. PW1 further testified that when she finally came to Ghana, A1 and A2 took her to where other girls were harboured and there and then she was told that, the work she came to Ghana to do is prostitution. That she resisted but A1 and A2 told her that she had no option than to comply with their directives. That she wished she could go back to Nigeria when A1 and A2 told her she was coming to do prostitution but she did not have any money to go back.

PW1 continued that A1 and A2 induced her into prostitution where she was made to have sexual intercourse with a lot of men in exchange for money. That A1 and A2 made her to pay them GHS8,000.00 out of the proceeds of the prostitution she was forced to do.

That at a point she fell sick and could not go out to have sexual intercourse with men and so could not bring money to A1 and A2. That Al and A2 threatened to sell her out to buyers and take their money. According to PW1 before she was rescued, she paid GHS8,000 to A1 and A2. That one day as she was out with her friend who was also induced into prostitution by A1 and A2, a good Samaritan rescued them to the Chief's Palace and later brought them to the CID Headquarters. PW1 tendered her statement taken at the police station as exhibit 'A'.

PW2, also one of the victims herein, testified that her name is Gloria Vincent. That before she came to Ghana, she had known Jessica Daniels A1 for a very long time in Nigeria as she was more of a family friend and known to almost all her family members. That she came to know Kelvin Johnson A2 when she came to Ghana. That in January 2024, A1 called her brother in Nigeria and requested for her cell phone number from her brother;

and because of the mutual relationship her family had with A1, her brother gave her cell phone number to Al. That in the same month of January 2024, A1 called her and deceived her that there are job opportunities in Ghana and that she should come to Ghana where she can work as a house help. That A1 told her that would be paid well. According to PW2, A1 went ahead and sent her money to come to Ghana. That in January 2024, she arrived in Ghana and was received by A2 who took her to where he lives with A1. That she did not meet A in the house on the first day she came to Ghana until the following day. That she later got to know that A1 and A2 are lovers.

PW2 further testified that she was later moved to another house by A1 and A2 where she thought she was going to start work as a house help. That the house she was taken to is where A2's native sister by name Ella lives. According to PW2, in the evening of the day she was taken to Ella, Ella told her that the purpose for which A1 and A2 brought her to Ghana was to do prostitution. That Ella gave her some short dresses to wear and told her that the dresses were procured for her by A1 and A2 before she came to Ghana. That she wished she could go back to Nigeria when she was informed that she came to Ghana to do prostitution but she was helpless as she did not have money on her to go back.

PW2 continued that A1 and A2 later told her that she has to work and pay GHS8,000.00 to them. That she was made to have sexual intercourse with a lot of men in exchange for money. That before she was rescued, she paid a total amount of GHS8,000.00 to A1 and A2. That she has never engaged herself in prostitution before until A1 and A2 forced her into it against her wish. PW2 also tendered her statement taken at the police station as exhibit 'B'.

PW3, the investigator herein No. 6853 Detective Corporal Miriam Selasie Kudze also testified that she is stationed at the CID Headquarters, and attached to the Anti-Human Trafficking Unit.

That on 1st July 2024, a case of Human Trafficking was referred to her to investigate after A1 and A2 were arrested and brought to the Anti-Human Trafficking Unit by one Chief Calistus Elozipuwa, a member of the Nigerians in Diaspora Organization (NIDO) based in Ghana and subsequently rescued two victims of Human Trafficking namely Gloria Vincent also called Grace and Gloria Igbetar also called Diamond. That her investigations revealed that both victims were trafficked to Ghana by A1 acting in concert with A2. That she also discovered in her investigations that A1 and A2 deceived the victims and subsequently lured them to Ghana to work as domestic servants but ended up inducing them into prostitution.

According to PW3, she also established that A1 and A2 exploited the victims after taking undue advantage of their vulnerabilities. That she found out during her investigations that each of the victims paid A1 and A2 GHS8,000.00 out of the proceeds of the prostitution the victims were forced into by A1 and A2. That during the pendency of this case before this court, A1 and A2 caused their friends and families to bring the money they collected from the victims and same retained by police for evidential purpose. That on 1st July 2024, a statement on caution was obtained from A1 and A2 and they were subsequently charged with the offences of Conspiracy and Human Trafficking on 3rd July 2024. PW3 tendered the caution and charge statements of the accused persons as exhibits 'C', 'D', 'E' and 'F' respectively.

Thereafter, the prosecution closed its case.

After the close of the case of the prosecution, the Court examined the evidence adduced by the prosecution witnesses to make a determination whether a prima facie case had been made out by the prosecution to warrant the accused persons to open their defence. The Court subsequently gave a ruling that a prima facie case had been made out against

the accused persons and they were called upon to enter into their defence, after the options available to them were explained to them. The Court also reminded the accused persons of the charges against them.

EVIDENCE OF THE ACCUSED PERSONS

In her defence, the 1st accused person testified in open Court that her name is Jessica Daniels; and she is from Benue State, Nigeria. That she knows nothing about the charges leveled against her. That she has not trafficked anybody from Nigeria to Ghana to work as a prostitute. That she knows the victims back home in Nigeria. A1 further testified that on one occasion when she visited home, they discussed their intention to come to Ghana with her and they took her number. That due to the harsh conditions back home, every young girl in Nigeria wants to come to Ghana, so she gave her number willingly to them. That one day, she was even out of Accra, when she received a call from these two girls that they have arrived in Ghana. That she was surprised and did not know what to do, so she called her friend, A2 to meet them and find a place for them to rest which he did.

A1 continued that on her return, she met them and they lived together with them for a little while but they left to rent their own place at Nungua where they have lived on their own for some time now. That it is never the case that they have been under captivity and the two of them conspired to bring them here.

That she has not taken any money from them as alleged by the prosecution, that the money collected from their friends at the police station were supposed to be used as bail and subsequent withdrawal of the case.

The 1st accused person did not call witness and closed her defence.

The 2nd accused person in his defence testified that his name is Kelvin Johnson, that he is a Nigerian and he comes from Enugu State in Nigeria. He continued that he has never conspired to bring anybody from Nigeria to work as a prostitute. That sometime this year, he was home and his friend Jessica called that some two girls she knows back home arrived in Ghana. That she was out of Accra at the time so he went to meet the girls and sent them home. That these girls have since left their place and going about doing their own things. A2 further testified that he has not collected any money from any of them as proceeds from the job. That monies with the police are monies they collected from his friends as bail and to drop the case.

The 2nd accused person called one witness as DW1, who gave her name Beauty Ezeh. That she lives at Osu and sells skin care products as well as Nigerian foodstuff. DW1 continued that she knows the accused persons but does not know the victims. That she attends same church at Christ Embassy with both accused persons.

According to DW1, the 1st accused person braids her hair so last year June, she briefed her about this case. That she told her that they have been arrested and she briefed everything to her. That they were accused about human trafficking so they called her and her sister for money for their bail out so she and her sister contributed GHS2,000 and they later said the police requested for more money and they told them they did not have that money.

DW1 further testified that she also knows some of their church members and also their friends at Nungua contributed money. That she later realized they were still in police custody and she asked them why and they told her everything. That she has known them for three years now because they are church members. That they do not have any business with human trafficking so she thinks they are innocent.

The 2nd accused person thereafter closed his defence.

LEGAL ISSUES

The legal issues to be determined are:

1. *Whether or not the accused persons herein did agree to act together with a common purpose to commit crime to wit; human trafficking.*
2. *Whether or not the accused persons herein did deceive, lure and transport victim Gloria Vincent a.k.a. Grace from Nigeria to Ghana under the pretext of securing her a job as a domestic servant but ended up forcing her into prostitution.*
3. *Whether or not the accused persons herein did deceive, lure and transport victim Gloria Igbetar a.k.a. Diamond from Nigeria to Ghana under the pretext of securing her a job as a domestic servant but ended up forcing her into prostitution.*

BURDEN AND STANDARD OF PROOF

The basic rule in all criminal proceedings is that the burden of establishing the guilt of the accused person is on the prosecution and the standard of proof required by the prosecution should be proof beyond reasonable doubt as provided in the ***Evidence Act, 1975 (NRCD 323)***, per ***sections 11(2), 13(1) and 15.***

Under ***Article 19(2)(c) of the 1992 Constitution***, a person charged with a criminal offence is presumed innocent until proven guilty or has pleaded guilty.

In the case of ***Asante (No.1) v. The Republic (No.1) [2017-2020] 1 SCGLR 132*** at ***143*** per Pwamang JSC, it was held that:

> *"Our law is that when a person is charged with a criminal offence it shall be the duty of the prosecution to prove his guilt beyond reasonable doubt, meaning the prosecution has a burden to lead sufficient admissible evidence such that on an assessment of the totality of the evidence adduced in Court, including that led by the accused person, the Court would believe beyond a reasonable doubt that the offence has been committed and that it was the accused person who committed it. Apart from specific cases of strict liability offences, the general rule is that throughout a criminal trial the burden of proving the guilt of the accused person remains with the prosecution. Therefore, though the accused person may testify and call witnesses to explain his side of the case where at the close of the case of the prosecution a prima facie case is made against him, he is generally not required by law to prove anything. He is only to raise a reasonable doubt in the mind of the Court as to his commission of the offence and his complicity in it except where he relies on a statutory or special defence."*

The burden on the accused person, when called upon to enter his or her defence, is to raise a reasonable doubt in the case of the prosecution. The standard of proof for the defence is proof on a balance of probabilities. See the case of ***Osae v. The Republic [1980] GLR 446***

ANALYSIS

The general rule is that only a citizen of Ghana is subject to the criminal jurisdiction of the Ghanaian Courts. However, ***section 56 of the Courts Act, 1993 (Act 459)*** provides that

a person who is not a citizen of Ghana may be subject to the criminal jurisdiction of the courts of Ghana where he or she commits any of a number of offences. Of interest are those of the offences listed in the section which bear directly on human trafficking.

These are: slave trade or trafficking in slaves; trafficking in women and children; falsification or counterfeiting or making use of false copies or counterfeits of any official seal of Ghana or any currency, instrument of credit, stamp, passport or public document issued by the Republic or under its authority; genocide; any offence against the property of the Republic; unlawful traffic in narcotics; and any other offence which is authorised or required by a convention or treaty to which the Republic is a signatory to be prosecuted and punished in Ghana wherever the offence was committed.

Flowing from the above authority this court is competent to try a person who is not a citizen of Ghana.

The accused persons have been charged with the offence of conspiracy to commit Human Trafficking, and two counts of human trafficking contrary to *section 23(1) of the Criminal Offences Act, 1960 (Act 29)* and *sections 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784).*

Section 23(1) of Act 29 on conspiracy provides that:

> *"Where two or more persons agree to act together with a common purpose for or in committing or abetting a criminal offence, whether with or without a previous concert or deliberation, each of them commits a conspiracy to commit or abet the criminal offence."*

In the case of ***Republic v. Eugene Baffoe Bonnie (unreported); Suit No. CR/904/2017 delivered on 12th May, 2020***, Kyei Baffour JA sitting as an additional High Court Judge stated the essential ingredients of the offence which the prosecution must prove to succeed on the charge of Conspiracy as follows:

i. That there were at least two or more persons.
ii. That there was an agreement to act together.
iii. That the sole purpose of the agreement to act together was for a criminal enterprise.

The Supreme Court in the case of ***Faisal Mohammed Akilu v. The Republic [2017-2018] SCGLR 444*** per Yaw Appau JSC stated on Conspiracy as follows;

> *"Conspiracy could therefore be inferred from the mere act of having taken part in the crime where the crime was actually committed. Where the conspiracy charge is hinged on an alleged acting together or in concert, the prosecution is tasked with the duty to prove or establish the role each of the alleged conspirators played in accomplishing the crime"*

Section 2 of Act 694 as amended by Act 784 on prohibition of trafficking provides as follows:

> *"(1) A person shall not traffic another person within the meaning of section 1 or act as an intermediary for the trafficking of a person.*
>
> *(2) A person who contravenes subsection (1) commits an offence and is liable on summary conviction to imprisonment for a term of not less than five years."*

The meaning of human trafficking has been provided under ***section 1 subsections 1 and 2 of Act 694 as amended by Act 784*** as follows:

> *"(1) Human trafficking means the recruitment, transportation, transfer, harbouring, trading or receipt of persons within and across national borders by*
> *(a) the use of threats, force or other forms of coercion, abduction, fraud, deception, the abuse of power or exploitation of vulnerability, or*
> *(b) giving or receiving payments and benefits to achieve consent.*

(2) Exploitation shall include at the minimum, induced prostitution and other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the removal of organs."

From the above, the prosecution has the burden to prove that the accused persons trafficked the victims herein; that is, they obtained the interest and consent of the victims herein through threats, force, deception, coercion, abuse of power or exploitation of the victims' vulnerability and thus recruited, transported and transferred the victims from Nigeria to Ghana to come and practice prostitution.

From the evidence on record; PW1 testified that A1 deceived her that there are a lot of job opportunities in Ghana which pays well and that the value of the Ghanaian currency was better than that of the Nigerian currency. That A1 further convinced her to borrow money from somebody and come to Ghana and that her boss will pay the person back when she (PW1) comes to Ghana.

PW1 also testified that when she finally came to Ghana, A1 and A2 took her to where other girls were harboured and there and then she was told that, the work she came to Ghana to do is prostitution. That she resisted but A1 and A2 told her that she had no option than to comply with their directives. That A1 and A2 induced her into prostitution where she was made to have sexual intercourse with a lot of men in exchange for money. That A1 and A2 made her pay them GHS8,000.00 out of the proceeds of the prostitution she was forced to do.

She also testified that at a point she fell sick and could not go out to have sexual intercourse with men and so could not bring money to A1 and A2; and they threatened to sell her out to buyers and take their money. That she paid the said GHS8,000.00 to A1 and A2 before she was rescued.

The accused persons denied these assertions by PW1, however PW1 vehemently maintained under cross examination that the 1st accused person deceived her to come to Ghana and both accused persons kept her in their apartment for the night she came. That they then took her to another house the next day where they kept the other girls there were doing the same prostitution for them. From the testimony of PW1 and her answers under cross examination, this court has no cause to doubt her on her evidence that she was forced into prostitution by the accused persons. Under cross examination by counsel for the accused persons, PW1 maintained her position that she came to Ghana through the 1st accused person after she was assured of a safe work in Ghana, but she was deceived and it was not for her benefit because the accused persons collected the proceeds from the prostitution from her. PW1 also testified that the 2nd accused person was the one who took from her the proceeds from the induced prostitution every Sunday. That it was also the 2nd accused person who caused his agent to transport her from Lagos to Ghana. That she would not have come to Ghana if not for the assurances of the 1st accused person.

PW2, another victim in the instant case also testified that she had known the 1st accused person for a very long time in Nigeria as she was more of a family friend and known to almost all her family members. That in January 2024, A1 called her and deceived her that there are job opportunities in Ghana and that she should come to Ghana where she can work as a house help. That A1 told her that she would be paid well. That A1 then sent her money to come to Ghana; and when she arrived in Ghana A2 received her and took her to where he lives with A1. That she was later moved to another house by Al and A2 where she thought she was going to start work as a house help but by the evening of that day, Ella (A2's sister) told her that the purpose for which A1 and A2 brought her to Ghana was to do prostitution. That she was helpless at that time so she could not go back to Nigeria as she did not have money on her to go back. PW2 also testified that she had to work as a prostitute against her wish to pay GHS8,000.00 to the accused persons.

Similar to PW1, PW2 vehemently maintained her evidence under cross examination by counsel for the accused persons. She repeated that the 1st accused person deceived her to come to Ghana. That they made her engage in prostitution and took the proceeds thereof, from her.

According to PW3, the investigator herein, her investigations revealed that both victims were trafficked to Ghana by A1 acting together with A2. That her investigations also disclosed that A1 and A2 deceived the victims and subsequently lured them to Ghana to work as domestic servants but ended up inducing them into prostitution. That during the pendency of this case before this court, A1 and A2 caused their friends and families to bring the GHS8,000.00 they collected from each of the victims and same retained by police for evidential purpose. PW3 also tendered the caution and charge statements of the accused persons as exhibits 'C', 'D', 'E' and 'F' respectively.

A careful examination of these exhibits shows that same were taken in compliance with ***section 120 of the Evidence Act, 1975 (NRCD 323)***. There was an independent witness in the person of Owusua Osei Acheampong in exhibits 'C', 'D', 'E' and 'F' being the respective caution and charge statements of A1 and A2. To an extent these exhibits have some confession statements made by the 1st and 2nd accused persons to the effect that they agreed together to commit the offence of human trafficking and each played a significant role in the commission of human trafficking involving the two victims herein.

For the avoidance of doubt, I reproduce the relevant part of exhibit 'C' in relation to the 1st accused person as follows:

> *"... She agreed and came to Ghana after I paid for her transportation fare from Nigeria to Ghana. Kelvin @ Alaska my boyfriend met Grace and took her home. I later made him take her to Ella a friend's place where she would stay and work as a prostitute. I told her that she would have to pay GHS8,000.00 before she gains her freedom. I used to meet her at our*

hustling place but I don't meet her at Ella's place. Kelvin goes to Ella's place every Sunday after church to take the money from Grace. After about two months Grace was able to pay me GHS8,000.00 making her gain her freedom. In February 2024 Gloria Igbetar @ Diamond sent me a message on Facebook asking me to assist her travel to Ghana. I told her it was street work and that she would have to work as a prostitute and pay the transportation fare after which you would gain your freedom. I made Kelvin my boyfriend chat her so that she would think it's my boyfriend who is in charge. I feared they might end up beating me should I reveal to them that I was their madam. I paid for their transportation fare and made her pay me through Kelvin. Diamond also paid GHS8,000.00 through Kelvin."

Below is also the relevant part of exhibit 'E' in relation to the 2nd accused person:

"I got to know Grace through my girlfriend Jessica Aheme popularly known as Blessing. Blessing told me about her native sister back home in Nigeria who keeps disturbing her to help her travel to Ghana. Blessing told me that she told Grace about the streeetwork and how she is supposed to pay GHS8,000.00 once she gets to Ghana. Blessing asked me to assist her get an agent in Nigeria who will bring Grace from Nigeria to Ghana. I contacted an agent I know in Nigeria and Blessing paid their transportation fare for Grace and she arrived in Ghana in January 2024. I picked her from the lorry station and took her to an apartment where she would be staying and working. I go to the apartment every Sunday after church to take the money she has worked for Blessing. By February ending Grace had been able to pay GHS8,000.00 to Blessing through me. I got to know Diamond through Blessing also and I linked her to an agent in Nigeria whiles Blessing paid for the transportation fare. Diamond was the one who contacted Blessing on Facebook. Diamond begged Blessing to bring her to Ghana and also said she was willing to do anything to leave the village in Nigeria to Ghana. Diamond also paid GHS8,000.00 to Blessing through me.

Both Diamond and Grace worked as prostitutes to pay GHS8,000.00 each to Blessing through me. We both use the money to buy foodstuffs and other necessary items."

Exhibit 'D' has similar contents as in exhibit 'C'. Likewise exhibit 'F' has similar contents to exhibit 'E'; and the above statements made by the accused persons herein in their caution and charge statements support the case of the prosecution to the effect that the accused persons agreed to transport the victims from Nigeria to Ghana to be engaged in prostitution, then transferred them to one Ella where they stayed to practice the said prostitution and thereafter collected the money they made out of the prostitution from them as though they were slaves to them.

Akamba JSC in the case of ***Ekow Russel v. The Republic [2016] 102 GMJ 124 SC***, stated as follows:

> *"... A confession is an acknowledgment in express words, by the accused in a criminal charge, of the truth of the main fact charged or of some essential part of it.* ***By its nature, such statement if voluntarily given by an accused person himself, offers the most reliable piece of evidence upon which to convict the accused****. It is for this reason that safeguards have been put in place to ensure that what is given as a confession is voluntary and of the accused person's own free will without fear, intimidation, coercion, promises or favours ..."* (Emphasis mine)

Given that the said confession statements were obtained from the accused persons herein immediately they were arrested when issues concerning the instant case were fresh in their minds and also in the presence of independent witnesses, I find the accused persons' denial of same under cross examination as an afterthought because they had ample time

and opportunity as they were represented legally to raise the necessary objection to it but they did not only to dispute same after the said statements had been tendered in evidence.

In the case of ***Francis Atini v The Republic Criminal Appeal No. H2/17/2019 dated 23rd December 2020 CA***, the Court of Appeal stated thus:

> *"The evidence in the box was in conflict with the caution statement by the appellant. The evidence can best be described as an afterthought. It can be deduced that; the appellant told the truth when the matter was still fresh in his mind and had no time to manipulate same. His later evidence is an afterthought, and self-serving. It carries no weight and same is rejected. He gave a detailed account of how he took the tyres and the batteries and sold same without the consent of the complainant who was the owner of the items."*

This court will accordingly reject the evidence of the accused persons offered under cross examination in denial of the confession they made. This is because if the statements were obtained from the accused persons involuntary, being legally represented they would have done the needful before same were tendered in evidence as same were earlier served on them by way of disclosure long before PW3 offered them in evidence.

Moreover, the investigator who tendered these confession statements was available in Court as PW3 and was cross examined by counsel for the accused persons.

From the evidence on record, I find that the confessions made by the accused persons in their respective caution and charge statements support the case of the prosecution on the elements of the offence of human trafficking. Exhibits 'C', 'D', 'E' and 'F' also confirm the assertions made by PW1 and PW2 in their evidence that the accused persons herein transported them to Ghana and induced them to engage in prostitution where they collected the proceeds from same from them.

Given the circumstances of the victims who decided to seek greener pastures outside Nigeria, I find that they were exploited by the accused persons through their vulnerability and their status of unemployment. Thus, the 1st accused person obtained the interest and consent of the victims to come to Ghana for job with the help of the 2nd accused person who assisted to ensure they moved from Lagos to Ghana, through the exploitation of their vulnerability, and as a result, they recruited them and made them engage in prostitution for the benefit of the accused persons.

From the entire evidence on record, I find that the essential elements of the offence of human trafficking have been established by the prosecution, as I find the testimonies of PW1 and PW2 as credible and attach the necessary weight to same.

From the evidence on record, I find that the accused persons facilitated the transportation of the victims herein; and also received the said victims and sent them to the apartment where they lived and practiced prostitution; by exploiting their vulnerability as a result of their eagerness to seek greener pastures outside Nigeria. I further find that the said exploitation included induced prostitution which the accused persons benefited from the proceeds from same. Consequently, I find that the accused persons committed the offence of conspiracy to commit human trafficking as well as the two substantive offences of human trafficking.

In the case of ***Commissioner of Police v. Isaac Antwi*** **[1961] GLR 408-412,** it was held that the accused person is not required to prove anything. All that is required of him is to raise a reasonable doubt as to his guilt. This is further emphasized by ***sections 11(3) and 13(2) of the Evidence Act, 1975 (NRCD 323).***

The accused persons gave evidence and A2 further called one witness who testified in favour of both accused persons nonetheless their testimonies could not raise a reasonable doubt as to the guilt of the accused persons because apart from DW1 giving contradictory testimony that was also marred with uncertainties, A1 and A2 had earlier made confession statements when the matter was fresh in their minds and decided to give a different story in their evidence which the court has rejected as being inconsistent with their own confession statements.

Moreover, there is satisfactory evidence on record to sustain the charges against the accused persons.

I support my decision with the dictum of Denning J. (as he then was) in the case of ***Miller v. Minister of Pensions*** **[1947] 2 All E.R. 372 at p. 373** where he said:

> *"Proof beyond reasonable doubt does not mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence 'of course it is possible, but not in the least probable,' the case is proved beyond reasonable doubt, but nothing short of that will suffice."*

CONCLUSION

On the totality of the evidence on record, I find that the prosecution proved their case against the accused persons beyond reasonable doubt. For the foregoing reasons, I pronounce the accused persons herein guilty of the offence of conspiracy to commit human trafficking as well as guilty on the two counts of human trafficking.

Having considered that the 1st accused person is a woman and relying on ***section 313A (1) of the Criminal and Other Offences (Procedure) Act, 1960 (Act 30)***, I do hereby order that the convicted (A1) be tested for pregnancy before sentence is passed on her. The sentence of the court on both accused persons is therefore deferred for the Court to be furnished with the results of the pregnancy test of A1. Accordingly, the convicts shall be remanded in police custody for the police to ensure that a pregnancy test is conducted on the 1st convict.

30TH APRIL 2025

ACCUSED PERSONS/CONVICTS PRESENT

A.S.P. CHRISTOPHER ASANTE AHOKU HOLDING THE BRIEF OF A.S.P. ISAAC BABAYI FOR THE REPUBLIC PRESENT

AUGUSTINE GYAMFI, ESQ. FOR THE ACCUSED PERSONS/CONVICTS ABSENT

Prosecutor: The pregnancy report is ready and we have furnished the court with it.

Court: The Court has been furnished with a pregnancy test result in relation to the 1st convict dated 30th April 2025. The said pregnancy test result from the Achimota Hospital indicates that same is negative; implying that the 1st convict is currently not pregnant. Accordingly, the court shall proceed to give its sentence but before then, will take the plea in mitigation of the convicts, if any.

Pre-Sentencing hearing

Court: Do you have any plea in mitigation before sentence is passed?

1st convict: I know nothing about the charges. I am pleading with the court to have mercy on me and to tamper justice for me.

2nd convict: I plead with the court to have mercy on me because those girls knew what they were doing. I am begging the court to consider my plea.

Court: Are the convicts known?

Prosecutor: They are not known but the situation is such that this character is becoming one too many in the country, particularly young girls being brought from Nigeria to practice prostitution. Some are even murdered in the course of it and we are not able to trace their families and so we give them mass burial. Also, with the nature of the case, they go round to infect others with incurable diseases such as HIV/AIDS. Therefore, we pray for a stiffer punishment to deter others who are already in the business from doing so.

SENTENCING

In sentencing the accused persons/convicts herein, the court takes into consideration their respective plea in mitigation and the fact that they are first-time offenders as well as their youthful ages. In accordance with ***Article 14(6) of the 1992 Constitution***, time spent in custody by the accused persons/convicts pending trial and sentence, is considered by the court. The court has further considered the fact that the 1st convict herein is not currently pregnant per the pregnancy test result dated 30th April 2025.

However, the court has further considered the prevalence of the offence of human trafficking within the jurisdiction of this court, and across national borders particularly from Nigeria to Ghana where the victims are forced into prostitution, and the effect it has on the country as a whole.

This court is of the view that there is a need to impose a deterrent sentence to send a signal to the accused persons herein and other people with similar criminal tendency to curb the spate of human trafficking within the jurisdiction of the court and the country in general.

Flowing from the above, I consequently sentence each of the accused persons herein to serve a term of imprisonment of nine (9) years in hard labour on each of the three counts.

The sentences on all the three counts shall run concurrently.

From the entire evidence on record, the prosecution earlier made a prayer in relation to the amount of GHS8,000.00 that was taken from each of the victims herein by the accused persons, for same to be released to the victims, where the court upon hearing the response by counsel for the accused persons, ordered that the said amount of GHS16,000.00 be paid into court until further orders on same by the court.

In view of the above, I do hereby order that the said amount of GHS16,000.00 be released to the victims herein thus GHS8,000.00 to each victim.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)